

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Bench

Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

CRIMINAL APPEAL NO.119 OF 2021 & CRIMINAL PETITION 209-K of 2020

*(Against the judgment dated 15.12.2020 passed by the
High Court of Sindh, Karachi, in Crl. A.T. J. Appeal No.184/2019)*

HC Rana Tariq and others (Crl.A. No.119 of 2021) ...Appellants/Petitioners

The State (Cr.PLA. No. 209-K of 2020)

Versus

The State (Crl.A. No.119 of 2021)

...Respondent

Arshad S/o Abdul Sattar (Cr.PLA. No. 209-K of 2020)

For the Appellant : Nemo.

For the State : Mr. Siraj Ali Khan, Addl. PG Sindh.

For the Respondent : Nemo.
(Cr.PLA. No. 209-K of 2020)

Amicus Curie: : Mr. Qaswar Muqem, Advocate

Assistance : Muhammad Subhan Malik
(Judicial Law Clerk)

Date of Hearing: : 08.12.2025

JUDGMENT

Salahuddin Panhwar, J.– (CRIMINAL APPEAL NO.119 OF 2021)

Through this appeal by leave of the Court, the appellants, all police officials, have called in question the judgment dated 15.12.2020 passed by the High Court of Sindh, Karachi, in Criminal Anti-Terrorism Appeal No.184 of 2019, whereby while allowing the appeal of accused Arshad and acquitting him of the charge, the learned High Court invoked section 27 of the Anti-Terrorism Act, 1997 (“ATA”) against the present appellants and convicted them for defective inquiry/investigation, sentencing each to six months’ rigorous imprisonment with a fine of Rs.50,000 and, in default, three months’ simple imprisonment, with benefit of section 382-B of the Code of Criminal Procedure, 1898 (“CrPC”).

2. The prosecution case, briefly stated, is that on the night of 22.08.2018 a police party consisting of HC Rana Tariq and constables Faizullah, Muneem Rahim and Irfan Shafiq was patrolling on motorcycles from the Board of Secondary Education, Karachi towards Five Star Chowrangi, Karachi. At about 9:45 p.m., near a U-Phone franchise and Faysal Bank, they allegedly noticed two suspicious motorcyclists. On an attempt to stop them, both allegedly opened straight fire upon the police party. The police retaliated in self-defence; one suspect was hit by a bullet, fell down, was overpowered and disclosed his name as Syed Owais Hussain Jaffery. The second suspect, apprehended on the spot, disclosed his name as Arshad son of Mukhtiar.

3. On search, allegedly a 30-bore pistol loaded with three live rounds was recovered from injured Owais, whereas from Arshad a 30-bore loaded pistol, two Samsung mobile phones, a Q-mobile phone and cash of Rs.42,250 were recovered. FIR No.164/2018 under sections 353 and 324 PPC read with section 7 ATA was registered, and separate FIRs Nos.165/2018 and 166/2018 under section 23(1)(a) of the Sindh Arms Act, 2013 were also registered. Owais later succumbed to his injuries. On completion of investigation, challan was submitted before the Anti-Terrorism Court ("ATC"), Karachi against Arshad.

4. The ATC convicted Arshad under section 7(h) ATA read with section 6(2)(m) and (n) ATA, as well as section 353 and section 324 PPC and sentenced him to ten years' rigorous imprisonment with fine of Rs.100,000 or, in default, six months' further imprisonment. He was also convicted under section 25 of the Sindh Arms Act, 2013 and sentenced to seven years' rigorous imprisonment with fine of Rs.50,000 or, in default, six months' further imprisonment, with benefit of section 382-B CrPC.

5. Arshad preferred an appeal before the High Court. The learned High Court, after re-appraisal of the evidence, disbelieved the prosecution version, acquitted Arshad of all charges, and then, on the same record, proceeded to issue notices under section 27 ATA to the present appellants, terming their performance as defective inquiry and investigation. After obtaining their written explanations and hearing them, the High Court convicted and sentenced them as mentioned above.

6. Leave to appeal was granted by this Court on 01.04.2021. It is upon this court to examine, in substance: (i) whether, on a proper construction of section 6 ATA and the law declared in **Ghulam Hussain and other (PLD 2020 SC 61)**, the present incident could validly be treated as “terrorism” so as to attract the ATA; (ii) the true scope and interpretation of section 27 ATA, including the power of the High Court in appellate criminal jurisdiction; and (iii) whether the proceedings culminating in conviction of the appellants under section 27 ATA were in conformity with Article 10-A of the Constitution and the scheme of the CrPC regarding summary criminal trials.

7. We have heard the learned Additional Prosecutor General Sindh, the learned amicus curiae and have carefully perused the record, including the proceedings of the main criminal case as well as the section 27 ATA proceedings.

8. The first and foundational question is whether the prosecution case, even if accepted at its highest, constituted “terrorism” within the meaning of section 6 ATA; this Court in Ghulam Hussain Case (supra) has laid down that, keeping in view the current definition of terrorism in section 6 ATA, the mere gravity or shocking nature of an offence, or the creation of fear in a locality, does not provide a valid yardstick for branding an offence as terrorism. An act is terrorism when the use or threat of violence is for advancing a political, religious or ideological cause, or is designed to intimidate or overawe the Government or the public or a section thereof, or to destabilize society at large. Ordinary crimes, even when heinous or brutal, remain distinct from terrorism when their motivation is personal or private and their effect is confined to the usual repercussions of crime in society.

9. In the present case the allegations against Arshad and the deceased Owais, at best, described a street encounter between a police patrol and suspected criminals, followed by recovery of weapons, mobile phones and cash. There is no allegation of any political, religious or ideological motive; no assertion that the incident was designed to coerce or intimidate the Government, a segment of the population or society at large; and no pleaded link with any proscribed organization or terrorist agenda. Further, they were not arrested, while being chased for commission of any crime. The alleged firing was directed at the police party intervening in the purported criminal activity. Such incidents, regrettably not uncommon in urban policing,

fall squarely within the domain of ordinary criminal law. They do not, by themselves, satisfy the statutory elements of terrorism under section 6 ATA as interpreted by this Court.

10. We therefore hold that the present occurrence did not constitute “terrorism” within the contemplation of section 6 ATA and should not have been brought within the fold of the ATA. The ATC lacked subject-matter jurisdiction to try Arshad under the ATA, and the invocation of sections 6 and 7 ATA was misconceived. Once this is so, the superstructure built upon the misclassification, including recourse to section 27 ATA, is also vitiated. Section 27 is not an independent penal provision; it is a special punishment embedded in a validly invoked ATA jurisdiction. Where the case substantively lies outside the ATA, section 27 cannot be pressed into service merely because, in practice, an ATC happened to try the case or a High Court happened to hear an appeal arising therefrom.

11. This brings us to the more difficult interpretative question of the scope of section 27 ATA and the powers of the High Court. It is pertinent to mention that, section 12 ATA, states that only an Anti-terrorism Court, has the ultimate jurisdiction to try the matters in regards to “terrorism”, the provision reads as under:

“12. Jurisdiction of Anti-terrorism Court. — (1)
Notwithstanding anything contained in the Code or in any other law, a scheduled offence committed in an area in a Province or the Islamabad Capital Territory shall be triable only by the Anti-terrorism Court exercising territorial jurisdiction in relation to such area.”

Therefore, even the High Court does not have the requisite jurisdiction to conduct the trial of cases falling under “terrorism” as defined in 6 ATA, in its original jurisdiction, and only possesses jurisdiction to hear such cases in its appellate jurisdiction. Now it becomes a necessity to refer to section 27 ATA, which reads as under:

“27. Punishment for defective investigation and reward for successful investigation. — (1) *If an Anti-terrorism Court or a High Court comes to the conclusion during the course of or at the conclusion of the trial that the investigating officer, or other concerned officers have failed to carry out the investigation properly or diligently or have failed to pursue the case properly and in breach of their*

duties, it shall be lawful for such Court or, as the case may be, High Court to punish the delinquent officers with imprisonment which may extend to two years, or with fine, or with both by resort to summary proceedings.”

In cases where the appeal has been filed under Section 25 ATA, the term, “High Court”, used in section 27 ATA, means a High Court in its appellate jurisdiction, and “*during the course of or at the conclusion of the trial*”, means the original trial conducted by Anti-terrorism Court below. The above chains brings us to the conclusion that, if a High Court at appellate stage is of the view that there has been defective investigation in the case, it is empowered to punish such officials involved.

12. However, this interpretive conclusion does not assist the prosecution in the present case for two reasons; first, as already held, the case did not substantively fall within the ATA; the jurisdictional precondition for invoking section 27 was missing. Second, even where section 27 is otherwise available, its exercise is circumscribed by constitutional and procedural safeguards, which, on the facts here, were not observed.

13. Section 27 ATA creates a distinct criminal liability for the investigating officer and other officers, punishable by imprisonment and fine. A proceeding under section 27, therefore, results in a “criminal charge” within the meaning of Article 10-A of the Constitution. The officer facing such a charge is entitled to a fair trial and due process. The phrase “by resort to summary proceedings” cannot be read as a license to drop these guarantees.

14. In our criminal procedure, “summary” is a term of art. Chapter XXII of the CrPC (sections 260 to 265) regulates summary trials. It permits certain simplifications of form and record, but it does not dispense with the essentials of criminal process: the communication of a clear accusation, an opportunity to plead and contest, the right to cross-examine witnesses, the right to adduce defence evidence, and an opportunity to explain the incriminating material before a reasoned finding of guilt or innocence is recorded. Summary procedure cannot dispense with the fundamental requirements of fair trial.

15. Accordingly, we hold that proceedings under section 27 ATA, whether before an ATC or a High Court, must, at a minimum, respect the core safeguards of Chapter XXII CrPC read with Article 10-A. The

court must: (i) articulate, orally or in writing, the specific acts or omissions alleged against each delinquent officer so as to constitute defective or dishonest investigation; (ii) treat the officer as an accused person, not merely as a witness who has fallen out of favour; (iii) permit the officer to contest the allegations, including by cross-examining witnesses where facts are disputed and by producing evidence in defence; and (iv) record, even in brief form, the substance of evidence and the reasons leading to conviction or acquittal. A mere show cause notice, followed by written explanation and some informal questioning, falls far short of these requirements and results in a conviction that is incompatible with Article 10-A.

16. The Sindh High Court in ***Rasool Bux, ASI (Retd.) and others v The State (2022 YLR 402)*** correctly emphasized that proceedings under section 27 ATA cannot be used to punishment for contempt in the face of the court, where, in strictly defined situations, sentence may sometimes be pronounced forthwith. It stressed that, in every other context, the basic structure of a criminal trial, including formulation of charge and a real opportunity to defend, remains indispensable. We find ourselves in respectful agreement with that approach and endorse it, subject to the additional clarifications in this judgment regarding the link with Chapter XXII CrPC and Article 10-A.

17. Turning to the case at hand, the learned High Court, having acquitted Arshad, embarked upon section 27 proceedings by issuing detailed notices to the appellants, identifying perceived defects and contradictions in the investigation and in their conduct. The appellants submitted written explanations and were heard in court. The proceedings were not conducted in accordance with law; they were not placed on notice in the form known to criminal law, that they were to stand trial as accused persons, no opportunity was given to present evidence in their defence, they were not put in witness box to confront the allegations against them and lastly, they were not given opportunity to test, by cross-examination, the material now used against them; their status shifted, without procedural transition, from being prosecution witnesses to convicted persons. Such a course might be sufficient in disciplinary or departmental proceedings, where the standard of proof and procedural framework is different, but it is inadequate for a criminal conviction attracting imprisonment. The High Court relied essentially on the evidentiary record of the main criminal case, in which the appellants had appeared as police

witnesses, and on its own assessment of their explanations, to convict them. This is precisely the sort of procedural ambush that Article 10-A is designed to prevent.

18. We are conscious that the learned High Court was genuinely concerned by what it perceived as grave lapses, and perhaps worse, in the investigation of a case involving loss of life in a claimed police encounter. Courts have both the authority and the responsibility to denounce such lapses where they appear, to direct registration of criminal cases under the ordinary law, and to require departmental authorities to take appropriate action. Section 27 ATA, however, is a punishment of last resort within the special regime of anti-terrorism, not a ready substitute for those other mechanisms nor an automatic sequel to every acquittal in an ATA case.

19. We therefore hold that, even assuming section 27 ATA could otherwise have been invoked, the proceedings culminating in conviction of the appellants did not conform to the minimum content of due process and fair trial under Article 10-A and the CrPC. The convictions are liable to be set aside on this ground as well.

20. As this appeal arises directly from the judgment reported as ***Arshad v The State (2021 P Cr. L J 285)***, it is necessary to clarify the status of that precedent. To the extent that *Arshad* (supra) treats the present occurrence as falling within the ATA, and to the extent that it upholds the conviction of the appellants under section 27 ATA on the basis of the rushed procedure adopted, it does not lay down the correct law and is hereby disapproved. Future reliance on it for those propositions would be misplaced. The correct position is that: (i) classification of an offence as “terrorism” must strictly satisfy section 6 ATA as interpreted by this Court; (ii) section 27 ATA may, in principle, be exercised by an ATC or by a High Court seized of an ATA matter, including in appeal, the appeal being continuation of the trial; but (iii) such exercise must invariably conform to Article 10-A and the framework of summary criminal trial under Chapter XXII CrPC, and cannot be reduced to a mere exchange of notices and replies.

21. Nothing said in this judgment should be understood as exonerating or condemning the appellants in respect of any potential liability under the ordinary criminal law or under service and disciplinary rules. We are neither sitting as a departmental tribunal, nor as a court of first instance on any allegation of murder, fake

encounter or corruption. Our remit is confined to examining the legality of their conviction under section 27 ATA by the High Court. If any competent authority, on the basis of the record or otherwise, considers that criminal or departmental proceedings are warranted against any of the appellants, it shall be at liberty to initiate or pursue such proceedings in accordance with law, affording them due process of law.

22. For the reasons recorded above, this appeal is allowed. The conviction and sentence of the appellants under section 27 ATA, as recorded by the High Court of Sindh, Karachi, in Criminal Anti-Terrorism Appeal No.184 of 2019, are set aside and they are acquitted of the said charge. If any of them is in custody solely by virtue of that conviction, he shall be released forthwith, if not required to be detained in any other case.

23. This order shall not affect or prejudice any departmental, criminal or other proceedings, if any, that may lawfully be initiated or continued against the said officers in relation to the incident, under the ordinary law, and strictly in accordance with due process.

CRIMINAL PETITION 209-K of 2020

For the reasons recorded in Criminal Appeal No.119 of 2021, in absence of the case falling in scope of ATA, we find no illegality or infirmity with the impugned judgment to the extent of acquittal of the respondent Arshad. Therefore, leave is refused and petition stands dismissed.

Judge

Judge

Judge

Announced in open Court on _____ January, 2026.

Judge

Islamabad

08.12.2025

Muhammad Subhan Malik (JLC)/-

Approved For Reporting